



April 16th 2018 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=97uoh48Y1X8
Publication Date	2018-04-17T22:25:34Z
Target Category	delaware_county

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Delaware County Board of Commissioners Meeting Summary

Meeting Date: April 16, 2018

Report Type: Comprehensive Municipal Meeting Analysis

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** [00:00:39](#) Public Hearing regarding the fall/disposition of tax sale parcels (3012 North Madison, Gaston; 401 Madison, Gaston; 14400 West Haven Street, Daleville; 4100 adjacent north of Eaton, Muncie; 2800 North Wheeling, Muncie; and 501 West Jackson, Muncie).
- **Summary of Discussion:** Mr. Walters from the ECI Regional Planning District presented properties identified by Brad Book out of Delaware County Economic Development during the tax sale process. Businesses and residential entities expressed interest, prompting the issuance of RFPs. A motion was made and approved by voice vote to close the public hearing.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order on Monday, April 16, 2018.
 - **Attendance:**
 - **Present:** Mr. Henry, Ms. Reagan, Mr. King, Mr. Brooke (President)
 - **Absent:** Not explicitly stated.
 - **Presiding Officer:** Mr. Brooke (President).
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** None recorded in the transcript.
 - **Approval of Minutes:** 00:43:40 Prior meeting minutes from April 2, 2018, were submitted and approved by voice vote.
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4. Substantive Business & Board Action

- 00:03:30 **Parcel Award: Property of Michael Hynes**
 - **Sponsor / Presenter:** John (County Attorney / Staff)
 - **Deliberation Summary:** Mr. Hynes submitted a proper bid of one dollar for parcel number 180323-89009000 following established procedures. The adjacent property owner did not submit a competing bid.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by voice vote to remove from table and award the parcel to Mr. Hynes.
- 00:15:30 **Supplemental Agreement: Triad Associates (Bridge 226)**
 - **Sponsor / Presenter:** Engineering / County Staff
 - **Deliberation Summary:** A supplemental agreement reducing an existing inspection fee contract with Triad Associates for Bridge 226 by \$41,400 (bringing the percentage closer to construction costs). The bridge project was originally awarded to Ari Myers for \$623,000.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by voice vote.
- 00:17:05 **Labor Agreements: Sheriff's Deputies, Jailers, and Communications Technicians**
 - **Sponsor / Presenter:** County Staff / Negotiation Team
 - **Deliberation Summary:** Result of several months of negotiations combining three separate labor contracts with different rules and benefits into a single unified contract for sheriff's deputies, jailers, and level 1 communications technicians to streamline administration.

- **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by voice vote.
- **00:18:28 Joint Prosecution Agreement: Opioid Litigation**
 - **Sponsor / Presenter:** County Attorney
 - **Deliberation Summary:** A formality joining Delaware County with other Indiana municipalities to pursue opioid litigation proceeding in the Northern District of Ohio.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by voice vote.
- **00:19:09 Request for Proposals (RFP): Jail Project Program**
 - **Sponsor / Presenter:** County Staff / Engineering Team
 - **Deliberation Summary:** An RFP to advance the jail project using a build-own-transfer delivery method. Bids will be solicited from engineers and contractors to design and build the facility, locking in the price upon proposal entry, with awards anticipated in June 2018. Advertisements will run in local and regional papers.
 - **Item-Specific Public Input:**
 - *Ron Quackenbush* **00:21:17** inquired whether the RFP contemplates alternative options, such as an addition across the street from the current jail. Staff confirmed alternative proposals are contemplated.
 - **Action & Vote Disposition:** Approved by voice vote to move forward with the RFP process.
- **00:22:47 Resolution 2018-014: Tax Sale Certificates to Non-Profit (ECI Regional Planning)**
 - **Sponsor / Presenter:** Kessler Tax, Deputy Auditor's Office
 - **Deliberation Summary:** Final step in awarding tax sale certificates to East Central Indiana Regional Planning.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by voice vote.
- **00:23:30 Resolution 2018-015: Assigning 16 Tax Sale Certificates to Habitat for Humanity**
 - **Sponsor / Presenter:** Kessler Tax / County Staff
 - **Deliberation Summary:** Habitat for Humanity requested assignment of 16 properties as part of a coalition to improve quality of life in an area bounded by Madison, Perkins Memorial, and 8th Street (involving new construction, community gardens, public art, and pocket parks). A public hearing is set for May 7.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by voice vote to advance the resolution.
- **00:24:44 Polling Locations Approval: May Primary Election**
 - **Sponsor / Presenter:** Election Staff / Commissioners
 - **Deliberation Summary:** Leases secured for polling locations for the May primary. Minor changes occurred due to school closures and construction, notably moving precinct 75 from La Bajada High School to the highway garage.

- **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by voice vote.
- **00:30:43 Zoning Ordinance Amendments: Confined Feeding Operations (CFO) & Confined Animal Feeding Operations (CAFO)**
 - **Sponsor / Presenter:** County Attorney / Planning Staff (Marta Moody)
 - **Deliberation Summary:** Proposal to amend the zoning ordinance to add regulations, setbacks, waste management requirements (including lagoon bonds), and special use approval requirements for CAFOs and CFOs. Smaller operations require 660 ft setbacks from residences (1,320 ft from subdivisions; 2,640 ft from towns), while larger operations face doubled/tripled setbacks and mandatory BZA special use approval.
 - **Item-Specific Public Input:** Extensive public commentary throughout the meeting regarding CAFOs, property values, odors, and water runoff (summarized in Citizen Forum and Public Comment sections).
 - **Action & Vote Disposition:** Approved by voice vote to send the proposed amendments to the Planning Commission to conduct a statutory public hearing.
- **00:40:47 Claims Approval**
 - **Sponsor / Presenter:** County Auditor / Staff
 - **Deliberation Summary:** Payment of claims totaling \$2,054,905.23.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by voice vote.

5. Open Public Comment / Citizen Forum

- **00:21:17 Ron Quackenbush** (County Council President): Spoke during the jail RFP item regarding historical context on jail placement and alternatives.
- **00:27:15 Ron Quackenbush** (County Council President): Spoke during department head updates regarding emergency dispatch systems, highlighting the importance of maintaining joint city-county communication systems to avoid coordination failures seen in other states.
- **[00:30:21 & 04:19] Diana Harris** (8440 East Windsor Road, Selma): Addressed concerns regarding a proposed commercial winery in a residential/agricultural area adjacent to her property, citing traffic speeding, lack of road shoulders, drainage/flooding risks, parking, and potential alcohol-related safety hazards.
- **04:06 Claire Davis** (7301 East Windsor Road, Selma): Spoke against the proposed winery, presenting a petition signed by 11 neighborhood residents citing traffic hazards, public safety, and environmental runoff. (Note: Davis also volunteered for a BZA appointment earlier in the meeting at **00:02:04**).
- **04:11 Dave Fields** (750 East Windsor Road): Voiced opposition to commercial zoning encroachment in a residential/agricultural area where residents receive no community

benefit.

- **05:01 Michael Pope** (Hoosier Environmental Council): Discussed legal and policy threats of CAFOs, endorsing Hamilton County's ordinance as a model requiring BZA special use approval and highlighting potential conflicts with the county's Vision 2021 quality-of-place and economic development goals.
- **05:37 Perry Evans** (1270 North / property near Blackford County line): Raised concerns regarding unpermitted, unassessed buildings constructed on the subject CAFO property between 2009-2010 that have not paid property taxes.
- **05:56 Jennifer Herbing** (3410 South Burlington, Muncie): Commended work on CFO/CAFO ordinances, inquiring about mortality building odor regulations, manure application rules, and Board of Health enforcement authority.
- **06:37 David Brown** (112012 [location unstated]): Expressed concerns regarding agricultural runoff affecting ponds and emphasized the need for strict air and water pollution controls on CFOs.
- **06:16 Jim Harker** (12605 North Chestnut, Eaton): Argued that CAFOs operate as industrial factories rather than traditional farms, urged commissioners to enact strict air filtration requirements, and warned against repeating past unfulfilled promises regarding environmental protections.
- **06:15 Mark Carter** (Purdue Extension, 8831 South Wheeling Pike): Noted that Purdue Extension is neutral on individual livestock operations, offered research-based publications available downstairs, and briefly discussed methane capture technology challenges.
- **08:10 Unidentified Resident** (100 West): Requested that a formal building permit hold/moratorium be reinstated regarding CAFOs while permanent ordinances are being drafted.
- **11:30 Jason Mott** (17797 North County Road, Gaston / Livestock Producer): Spoke in defense of the modern livestock industry, explaining nutrient management, manure injection practices vs. surface application, and the economic necessity of recycling nutrients safely.
- **15:38 Sharon Hamel** (404 North Noemi Drive, Hartford City): Voiced concerns regarding runoff from the proposed CAFO site flowing into nearby lakes, well water contamination, and antibiotic use in confined livestock operations.
- **18:11 Dave (Last name unstated / organic farming background)**: Clarified organic farming standards (noting organic systems require pasture access) and noted that livestock waste contributions to e.coli impairments remain a documented water quality concern.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**

- A Planning Commission public hearing on the proposed CFO/CAFO zoning amendments is scheduled for May 3, 2018.
 - County Attorney agreed to draft a formal moratorium/hold ordinance on CAFO building permits for commissioner review within 48 hours.
 - **Adjournment:** 01:19:21 Presiding officer moved to adjourn the meeting. Approved by voice vote.
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